

Dhyanendra Singh v. State of U.P. & 5 Others

Allahabad High Court · Division Bench · 5 July 2016 · 2016 SCC OnLine All 1570 · Writ - C No. 29993 of 2016 · **Writ petition disposed of; restoration refused; liberty to apply afresh**

HEADNOTE

Where there is a serious allegation, the subject of pending criminal proceedings, that an electricity connection was obtained on the basis of forged documents, the writ court will not, under Article 226, direct restoration of that connection. A co-sharer of the property having complained that the tubewell connection was obtained on a forged affidavit and lodged an FIR, and the competent authority having rejected restoration on that ground, the Court found no illegality warranting interference. It left the petitioner at liberty to make a fresh application for a connection under the U.P. Electricity Supply Code, 2005, to be considered in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::connection-obtained-by-fraud

No writ restoration of a connection alleged to be obtained by forged documents (matter sub judice)

QUESTION

Should the writ court restore a connection where it is seriously alleged, in pending criminal proceedings, to have been obtained on forged documents?

HOLDING

No. Given the serious allegation that the connection was obtained on forged/fraudulent documents, and the matter being sub judice, the Court found no illegality in the authority's order refusing restoration and declined to interfere under Article 226. The petitioner was left at liberty to apply afresh for a connection under the Code, to be considered in accordance with law. ¶ 3-7

LIMITING FACTS

Tubewell connection; a co-sharer complained it was obtained on a forged affidavit and lodged an FIR; criminal proceedings pending (stayed in a criminal revision); authority rejected restoration on the forgery ground.

PRINCIPLE TAGS

no-writ-restoration-where-connection-alleged-fraudulent-and-subjudice The writ court will not restore an electricity connection under Article 226 where it is seriously alleged, in pending proceedings, to have been obtained by forged/fraudulent documents; the remedy is a fresh application or the outcome of the criminal case. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS IN FACT OBTAINED BY FORGERY

Sub judice in the criminal proceedings; the Court did not decide the truth of the forgery allegation, only that it barred discretionary writ relief for restoration. ¶ 5-7